

TENTATIVE RULING

Case: **Independence Capital Recovery LLC (ICR) v. Roman**
Case No. CV-2025-3614

Hearing Date: **February 17, 2026** **Department Fourteen** **9:00 a.m.**

Motion to compel arbitration:

Defendant Kelly Gum Roman’s unopposed motion to compel arbitration and stay proceedings is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc, § 1281.2.) Defendant has not shown that an agreement to arbitrate exists between the parties. (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 381 [“The party seeking arbitration bears the initial burden of demonstrating the existence of an arbitration agreement.”].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to quash:

Defendant Kelly Gum Roman’s unopposed motion to quash service is **DENIED**. Defendant fails to provide any legal authority in support of this motion. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

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TENTATIVE RULING

Case: **In the matter of Kaur (Estate)**
 Case No. PR-2025-0185

Hearing Date: **February 17, 2026** **Department Eleven** **9:00 a.m.**

Objector Gurbhag Singh’s unopposed motion for relief from order pursuant to Code of Civil Procedure section 473(b) is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) The Court finds that neither mandatory nor discretionary relief is warranted as a result of counsel’s failure to appear at the hearing on October 1, 2025. (See *Jackson v. Kaiser Foundation Hospitals, Inc.* (2019) 32 Cal.App.5th 166, 173-174 [“[Section 473(b)] ...affords *mandatory* relief to a party from a “default judgment or dismissal” caused by an “attorney’s mistake, inadvertence, surprise, or neglect,” section 473(b) also provides for *discretionary* relief from “a judgment, *dismissal*, order, or other proceeding taken against [the party] through his or her mistake, inadvertence, surprise, or *excusable* neglect.”]; *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423 [“Discretionary relief need not be granted for “errors by [counsel] ... in failing to calendar and appear” at a hearing.”]; Cianchetta Decl., ¶¶ 2 – 6.) There is no default judgment or dismissal that occurred as a result of the hearing on October 1, 2025, and the Court finds that Mr. Cianchetta’s neglect was not excusable.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.